



CHAPTER xxxvi

An Act to confirm a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act, 1861, relating to Great Yarmouth New Britannia Pier.
[1st August, 1962]

WHEREAS a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act, 1861, is not of any validity or force whatever until confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the said Act as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the Queen's Most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Order as set out in the schedule to this Act shall be Confirmation and the same is hereby confirmed and all the provisions thereof in of Order in manner and form as they are set out in the said schedule shall schedule. from and after the passing of this Act have full validity and force.

2. This Act may be cited as the Pier and Harbour Order Short title. (Great Yarmouth New Britannia Pier) Confirmation Act, 1962.

SCHEDULE

GREAT YARMOUTH NEW BRITANNIA PIER

Provisional Order to amend the enactments relating to the Great Yarmouth New Britannia Pier Company and for other purposes.

Short and
collective
titles.

1.—(1) This Order may be cited as the Great Yarmouth New Britannia Pier Order, 1962.

(2) The Great Yarmouth New Britannia Pier Act and Orders, 1899 to 1958, and this Order may be cited together as the Great Yarmouth New Britannia Pier Act and Orders, 1899 to 1962.

Commencement.

2. This Order shall come into operation upon the day when the Act confirming this Order is passed.

Exclusion of
Harbours,
Docks and Piers
Clauses Act,
1847.

3. The Harbours, Docks and Piers Clauses Act, 1847, shall not be incorporated with this Order.

Amendment
of section 21
of Great
Yarmouth
New Britannia
Pier Act, 1899.

4. Section 21 (Power to make pier and to take lands) of the Great Yarmouth New Britannia Pier Act, 1899, shall have effect as if after the word "sections" there were inserted the words "and may within the limits of deviation shown on the deposited plans from time to time alter and extend" and as if at the end thereof there were inserted the words "Provided that any alteration or extension of the pier or any part thereof under the provisions of this section shall not, by virtue of anything in this Act, be deemed, for the purposes of the Town and Country Planning General Development Order, 1950, and any enactment (as defined by the Town and Country Planning Act, 1947) amending or replacing the same, to be carried out in pursuance of an Act which designates the nature of the development and the land upon which it may be carried out."

Repeal.

5. The proviso to section 37 (Approval of works and buildings by Corporation) of the Great Yarmouth New Britannia Pier Act, 1899, is hereby repealed.

Saving for
town and
country
planning.

6. This Order shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act, 1947, for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Order.

7. All costs charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise incurred in reference thereto shall be paid by the Great Yarmouth New Britannia Pier Company.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Harbours Docks and Piers Clauses Act, 1847 ...	10 & 11 Vict. c. 27.
General Pier and Harbour Act, 1861	24 & 25 Vict. c. 45.
Great Yarmouth New Britannia Pier Act, 1899...	62 & 63 Vict. c. civ.
Town and Country Planning Act, 1947 ...	10 & 11 Geo. 6. c. 51.

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*Pier and Harbour Order
(Great Yarmouth New Britannia
Pier) Confirmation Act, 1962*

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